2025 C L C 276

[Balochistan]

Before Muhammad Ejaz Swati and Nazeer Ahmed Langove, JJ

ALI AKBAR ---Petitioner

Versus

Mst. NASEEM and 2 others ---Respondents

Constitution Petition No.711 of 2023, decided on 29th August, 2023.

(a) Oaths Act (X of 1873)---

----S.9---Family Courts Act (XXXV of 1964), Ss. 5 Sched.12---Maintenance allowance of minor girls---Enforcement of decree---Father (judgment-debtor), responsibility of---Scope---Denial of parentage---Scope---Judgment-debtor filed an application before the Executing/Family Court praying to discharge him from maintenance of lady/decree-holder's two minor daughters (also decree-holders)---Executing Court dismissed said application which judgment was maintained---Judgment-debtor filed a constitutional petition---Claim/plea of the petitioner (judgment-debtor) was that the minor girls were not his daughters---Validity---Record revealed that the plaintiff/respondent applied under section 9 of the Oaths Act with the prayer that if the petitioner on Oath refused the parentage of the minors girls, she would withdraw the claim of their maintenance, and if he refused, then she was ready to take Oath---Executing Court (Family Judge) allowed the application---Resultantly the petitioner recorded his statement on Oath, which was ambiguous and self-contradictory---Executing Court directed the petitioner to comply with the decree in letter and spirit---Petitioner failed to point out any illegality, irregularity, or non-observance of the mandatory law provisions in the proceedings, warranting interference by the High Court---Instead, the institution of the constitutional petition was just an attempt to cause delay, and deprive the daughters of their legal and Islamic rights---Constitutional petition, filed by judgment-debtor/father, was dismissed in limine, in circumstances.

(b) Family Courts Act (XXXV of 1964)---

----Ss. 5, Sched. 12---Maintenance allowance of minor girls---Enforcement of decree---Father (judgment-debtor), responsibility of---Scope---Denial of parentage---Scope---Judgment-debtor filed an application before the Executing/Family Court praying to discharge him from maintenance of lady/decree-holder's two minor daughters (also decree-holders)---Executing Court dismissed said application, which judgment was maintained---Judgment-debtor filed a constitutional petition---Claim/plea of the petitioner (judgment-debtor) was that the minor girls were not his daughters---Validity---Record showed that after the divorce between the petitioner and respondent, the latter filed a suit for recovery of the minor's maintenance allowance against the petitioner, which was decreed and later attained finality---Respondent (decree-holder) applied for the execution of the decree, and for the first time, the petitioner (judgment-debtor) came up with the plea that two minor girls were not his daughters and prayed for his discharge from their maintenance

allowance---Record further showed that the petitioner had filed an application under S.25 of the Guardians and Wards Act, 1890, for custody of six minors, including said two minor girls, which was dismissed, however, he was allowed to have meetings with all the minors (including said two minor girls) once a month---Thus, petitioner's plea was self-contradictory; in his (guardian) application, he applied for custody of the minors, including said two minor girls, however, suddenly, it was revealed to him that the said minors were not his daughters---Such conduct of the father was unfortunate and an attempt to escape his responsibility to maintain his children wherever they lived---Petitioner failed to point out any illegality, irregularity, or non-observance of the mandatory law provisions in the proceedings, warranting interference by the High Court---Institution of the constitutional petition was just an attempt to cause delay, and deprive the daughters of their legal and Islamic rights---Constitutional petition, filed by judgment-debtor/father was dismissed in limine, in circumstances.

(c) Family Courts Act (XXXV of 1964)---

----S. 5, Sched---Maintenance allowance of minors---Father, responsibility of---Scope---Definition of maintenance, which includes food, clothing, and lodging, is neither conclusive nor exhaustive and has a broader connotation and should be given an extended meaning---It is not a benefit but is an undeniable legal obligation of a father---Father cannot be absolved of his prime duty to maintain children, irrespective of the fact that the minors are living with their mother (respondent).

Moula Dad Barech for Petitioner.

Shoaib Ali for Respondent No.1.

Date of hearing: 23rd August, 2023.

ORDER

NAZEER AHMED LANGOVE, J.---In this petition, the following prayer has been made:

> "It is, therefore, respectfully prayed that the impugned order dated 30.3.2023 passed by the Family Judge-II, Quetta, and impugned order dated 02.05.2023, passed by the Additional District Judge-V, Quetta, may be set aside and discharge the petitioner from maintenance of Mst Naseem's two daughters, Faiza and Nida, forever, in the interest ofjustice and fair play."

2. We have heard the learned counsel for the parties and gone through the record with their assistance.

3. Facts of the case are that the petitioner Ali Akbar (judgment-debtor) filed an application to discharge him from maintenance of the respondent Mst. Naseem's (decree-holder's) two minor daughters, Bibi Faiza and Bibi Nida, because they are not his daughters.

It was contested by the respondent (decree-holder) with the clarification that at the time of separation (divorce) between the parties, minors Mst. Bibi Faiza and Bibi Nida were minors; despite repeated requests, the petitioner (judgment-debtor) refused to provide his CNIC for obtaining their Form-B; therefore, in order to save

future, welfare, and education of the said minors, the name of Chakar Khan (respondent's father) was incorporated as their father in the record.

The respondent applied under section 9 of the Oaths Act, with the prayer that if the petitioner on Oath refuses the parentage of the minors (Faiza and Nida), she will withdraw the claim of their maintenance; if he refuses, then she is ready to take Oath. Contested by the petitioner on legal and factual grounds, vide order dated 15th October 2022, the learned executing Court (Family Judge-II, Quetta), the application was allowed; as a result, on 26th October 2022, the petitioner recorded his statement on Oath, which was ambiguous and self contradictory.

4. The learned executing Court, vide order dated 30th March 2023, rejected the petitioner's application, and he was directed to comply with the decree in letter and spirit. Assailed in family appeal, but returned on the point of jurisdiction, vide order dated 2nd May 2023, passed by the learned Additional District Judge-V, Quetta; hence, this petition with the prayer mentioned.

5. A perusal of the record shows that after the divorce between Ali Akbar (petitioner) and Mst. Naseem (respondent), the latter filed a suit (No.195/2003) for recovery of the minors' maintenance allowance against the petitioner, which was decreed in the respondent's favour, vide judgment and decree dated 25th May 2004, passed by the learned Family Judge (Civil Judge-III, Quetta) and attained finality.

The respondent (decree-holder) applied for the execution of the decree. For the first time, the petitioner (judgment-debtor) came up with the plea that minors Faiza and Nida are not his daughters and prayed for his discharge to provide them with a maintenance allowance.

6. The record further shows that the petitioner filed an application (No.10/2011) under section 25 of the Guardians and Wards Act for custody of the minors, including Mst. Faiza and Mst. Nadia, which was dismissed vide judgment and decree dated 8th June, 2012, passed by the learned Additional Family Judge, Quetta; however, he was allowed to have meetings with all the minors, namely Anila, Asghar, Adnan, Noman, Faiza, and Nida once in a month, in the office of Civil Nazir.

The petitioner's plea is self-contradictory; in the referred application, he applied for custody of the minors, including Faiza and Nida.

However, suddenly, it was revealed to him that the minors named above were not his daughters. Such a father's conduct is unfortunate and an attempt to escape his responsibility to maintain his children wherever they live.

7. The definition of maintenance, which includes food, clothing, and lodging, is neither conclusive nor exhaustive, and has a broader connotation and should be given an extended meaning; it is not a benefit but is an undeniable legal obligation of a father, cannot be absolved of his prime duty to maintain children, irrespective of the fact that the minors are living with their mother (respondent No.1).

8. The petitioner failed to point our any illegality, irregularity, or non-observance of the mandatory law provisions in the proceedings, warranting interference by this

Court. Instead, the institution of this petition is just an attempt to cause delay, linger on the matter, and deprive the daughters of their legal and Islamic rights; such a trend cannot be encouraged, at least to say.

In view of the above, the petition is dismissed in limine.

MQ/40/Bal Petition dismissed.

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